

25STCV05670 25STCV05670

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-29

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Case Number: 25STCV05670 Hearing Date: June 29, 2026 Dept: 512

HEARING DATE: Mon., June 29, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Lopez, et al. v. Portillo, et al. COMPL.

FILED: 02-28-25

CASE NUMBER: 25STCV05670

FAC FILED: 07-02-25

NOTICE: OK

PROCEEDINGS: PLAINTIFFS' MOTIONS TO COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION, FORM INTERROGATORIES, AND SPECIAL INTERROGATORIES, AND DEEM REQUESTS FOR ADMISSIONS ADMITTED

MOVING PARTY:

Plaintiffs Soledad Lopez and Vanessa

Flores

RESP. PARTY: None

MOTIONS TO

COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION, FORM INTERROGATORIES, AND SPECIAL INTERROGATORIES; MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED; REQUEST FOR SANCTIONS

(CCP §§ 2030.290; 2031.300; 2033.280)

TENTATIVE RULING:

Plaintiffs Soledad Lopez
and Vanessa Flores' Motion to Compel Responses to Form Interrogatories,
Motion to Compel Responses to Special Interrogatories, Motion to Deem the Truth
of Matters Specified in Requests for Admission, and Motion to Compel Responses
to Requests for Production of Documents to Defendant Lesvia Patricia Portillo
are GRANTED.

Defendant Lesvia Patricia
Portillo is to provide code-compliant and verified responses to the first set
of FROGs, SROGs, and RPDs within 30 days of this order.

The Court orders that the
truth of the matters specified in the RFAs is deemed admitted.

Plaintiffs' requests for
sanctions as to all Motions are GRANTED in the reduced total amount of \$1,740.00, payable to Plaintiffs' counsel by
Defendant Lesvia Patricia Portillo within 30 days of this order.

Moving parties are ordered
to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of June 24, 2026 ☐ Late ☒
None

REPLY: None
filed as of June 24, 2026 ☐ Late ☒
None

ANALYSIS:

I.

Background

On February 28, 2025, Plaintiffs Maria

Soledad Lopez and Vanessa Flores ("Plaintiffs") initiated the instant action against Defendants Lesvia Patricia Portillo, Oscar Rolando Portillo, Glenis Cardona, Debbie Leary, and Cardona Investments and Does 1-20, alleging seven causes of action.

On July 2, 2025, Plaintiffs filed a

First Amended Complaint ("FAC") against Lesvia Patricia Portillo, Oscar Rolando Portillo, Glenis Cardona, Cardona Investments, Lauren Lockwood, and Golden Escrow ("Defendants") and Does 1-10, alleging causes of action for Breach of Contract, Fraud, Constructive Fraud, Negligence, Breach of Fiduciary Duty, Unfair Business Practice, and Conspiracy.

On December 1, 2025, L. Portillo, O.

Portillo, Cardona, and Lockwood filed an Answer to the FAC.

On May 11, 2026, Plaintiffs filed the

instant Motion to Compel Responses to Form Interrogatories ("FROGs"), Motion to Compel Responses to Special Interrogatories ("SROGs"), Motion to Deem the Truth of Matters Specified in Requests for Admission ("RFAs"), and Motion to Compel Responses to Requests for Production of Documents ("RPDs") to Defendant Lesvia Patricia Portillo (collectively, "the Motions") and accompanying requests for sanctions.

On June 4, 2026, the Court reset the

hearings on the Motions for June 29, 2026, and gave notice. (6/4/26 Orders.)

No Oppositions to the Motions have been filed.

II.

Legal

Standard & Discussion

A party must respond to

interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (c).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) "If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product..." (Code Civ. Proc., § 2033.280, subd. (a).) "The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7." (Code Civ. Proc., § 2033.280, subd. (b).)

Interrogatories

Plaintiffs contend L. Portillo failed to timely respond to the first set of FROGs and SROGs on or by the statutory deadline.

Here, Plaintiffs' counsel served L. Portillo's counsel with the FROGs and SROGs by email on March 10, 2026. (SROGs and FROGs Motions, Gonzalez Decl., ¶ 7, Exhs. A-B.) Plaintiffs' counsel granted defense counsel an extension to provide the requested discovery responses, and thus the deadline for the responses was April 27, 2026. (SROGs and FROGs Motions, Gonzalez Decl., ¶¶ 12-13, Exh. G.) As of May 8, 2026, Plaintiffs' counsel had not received any responses, despite sending courtesy email reminders and giving an additional two-day extension after the April 27th deadline. (SROGs and FROGs Motions, Gonzalez Decl., ¶¶ 14-16, Exh. H.)

Thus, Plaintiffs are entitled to an order compelling L. Portillo to provide responses without objections to the FROGs and SROGs.

Requests for Production

Plaintiffs contend L. Portillo failed to timely respond to the first set of RPDs on or by the statutory deadline.

Here, Plaintiffs' counsel served L. Portillo's counsel with the RPDs by email on March 10, 2026. (RPDs Motion, Gonzalez Decl., ¶ 7, Exhs. A-B.) Plaintiffs' counsel granted defense counsel an extension to provide the requested discovery responses, and thus the deadline for the responses was April 27, 2026. (RPDs Motion, Gonzalez Decl., ¶¶ 12-13, Exh. G.) As of May 8, 2026, Plaintiffs' counsel had not received any responses, despite sending courtesy email reminders and giving an additional two-day extension after the April 27th deadline. (RPDs Motion, Gonzalez Decl., ¶¶ 14-16, Exh. H.)

Thus, Plaintiffs are entitled to an order compelling L. Portillo to provide responses without objections to the RPDs.

Requests for Admission

Plaintiffs contend L. Portillo failed to timely respond to the first set of RFAs on or by the statutory deadline.

Here, Plaintiffs' counsel served L. Portillo's counsel with the RFAs by email on March 10, 2026. (RFAs Motion, Gonzalez Decl., ¶ 7, Exhs. A-B.) Plaintiffs' counsel granted defense counsel an extension to provide the requested discovery responses, and thus the deadline for the responses was April 27, 2026. (RFAs Motion, Gonzalez Decl., ¶¶ 12-13, Exh. G.) As of May 8, 2026, Plaintiffs' counsel had not received any responses, despite sending courtesy email reminders and giving an additional two-day extension after the April 27th deadline. (RFAs Motion, Gonzalez Decl., ¶¶ 14-16, Exh. H.)

Thus, Plaintiffs are entitled to an order deeming the RFAs admitted.

Sanctions

Sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to compel responses. (See Code Civ. Proc., §§ 2030.290(c), 2031.300(c), 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

Here, L.

Portillo failed to serve timely responses to Plaintiffs' FROGs, SROGs, RPDs, and RFAs by the statutory deadline.

The Court finds Plaintiffs' Notices of Motion comply with Code of Civil Procedure section 2023.040.

Plaintiffs

request monetary sanctions of \$997.50 per Motion against L. Portillo, reflecting \$60.00 in filing fees and \$937.50 incurred in hourly fees to prepare the Motion and attend the Motion hearing. (Notice of Motions; Motions, Gonzalez Decs., ¶¶ 17-18.) Plaintiffs' counsel states the hourly billing rate for the work on the Motions is \$375.00 per hour. (Motions, Gonzalez Decs., ¶¶ 17-18.)

Given the straightforward and repetitive nature of the Motions, Plaintiffs' requests for monetary sanctions against L. Portillo are GRANTED in the reduced total amount for all four Motions of \$1,740.00, reflecting 4 hours incurred at \$375.00 per hour and filing fees of \$60.00 per motion.

III.

Conclusion & Order

For the foregoing reasons, Plaintiffs Soledad Lopez and Vanessa Flores' Motion to Compel Responses to Form Interrogatories, Motion to Compel Responses to Special Interrogatories, Motion to Deem the Truth of Matters Specified in Requests for Admission, and Motion to Compel Responses to Requests for Production of Documents to Defendant Lesvia Patricia Portillo are GRANTED.

Defendant Lesvia Patricia

Portillo is to provide code-compliant and verified responses to the first set of FROGs, SROGs, and RPDs within 30 days of this order.

The Court orders that the truth of the matters specified in the RFAs is deemed admitted.

Plaintiffs' requests for sanctions as to all Motions are GRANTED in the reduced total amount of \$1,740.00, payable to Plaintiffs' counsel by Defendant Lesvia Patricia Portillo within 30 days of this order.

Moving parties are ordered to give notice.